



CHAPTER xiii.

An Act to confer further powers on the South Wales Electric Power Company and for other purposes.

[29th July 1942.]

WHEREAS the South Wales Electric Power Company (hereinafter referred to as "the Company") were incorporated by Act of Parliament in 1900 by the name of the "South Wales Electrical Power Distribution Company" and with power to supply electricity (subject to the conditions and limitations contained in that Act) in an area of supply which comprises the whole of the county of Glamorgan part of the county of Monmouth and the whole of the county boroughs of Cardiff Swansea and Newport :

And whereas other powers have been conferred on the Company by the Act of 1900 and by subsequent Acts passed in the years 1902 1905 1906 1908 1920 1922 1925 and 1932 and by the last mentioned Act the Company's name was changed to its present name :

And whereas by the South Wales Electric Power Special Order 1941 the authorised share capital and the authorised loan capital of the Company were increased :

And whereas the Company have under their Acts the following powers of borrowing money and raising loan capital :—

- (1) Under section 29 of their Act of 1906 power to borrow money temporarily from their bankers by means of overdrafts or otherwise :
- (2) Under section 16 of their Act of 1932 and section 4 of the said special Order power to raise by borrowing on mortgage of their undertaking or by the creation and issue of debenture stock the aggregate sum of £2,470,000 :

- (3) Under section 18 of their Act of 1932 power to raise money by the issue of notes or bonds of a currency of not less than five years nor more than ten years subject to a limit of £100,000 on the amount outstanding at any one time on such notes and bonds:

16 & 17 Geo. 5.
c. 51.

And whereas in accordance with a request made by His Majesty's Government to the Central Electricity Board (hereinafter referred to as "the board") for the installation of certain additional plant in order to provide against the risk of damage by enemy action to generating plant in stations which are selected for the purposes of the Electricity (Supply) Act 1926 (hereinafter referred to as "the Act of 1926") an arrangement has been made between the board and the Company under section 5 of the Act of 1926 whereby the Company are extending a selected station belonging to them the board are (out of moneys made available to them by the Treasury) advancing to the Company free of interest the money to be expended by the Company in effecting that extension the Company are under obligation (except in certain events) to repay to the board by half-yearly instalments over a period of twenty-three years the money so advanced and the amount of such instalments (instead of interest and allowances for depreciation calculated in accordance with the provisions of paragraphs (e) and (f) of the Second Schedule to the Act of 1926 on the money properly expended by the Company for capital purposes and attributable to the said extension) is to be included in the price to be paid by the board to the Company for electricity generated at the station:

And whereas part of the money required for effecting that extension has already been advanced by the board to the Company and expended by the Company on that object:

And whereas it is expedient to confirm the borrowing of money by the Company from the board which has already taken place and to empower the Company to borrow further money from the board as by this Act provided:

And whereas it is expedient to enlarge the area of land which the Company may purchase or take on lease and hold for the purposes of their undertaking and to enact the other provisions of this Act:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:

1.—(1) This Act may be cited as the South Wales Electric Power Act 1942.

(2) The South Wales Electric Power Acts and Order 1900 to 1941 and this Act may be cited together as the South Wales Electric Power Acts 1900 to 1942.

2. In this Act unless the subject or context otherwise Definitions.
requires—

“the Company” means the South Wales Electric Power
Company;

“the board” means the Central Electricity Board;

“the Act of 1900” “the Act of 1902” “the Act of 1905”
and “the Act of 1906” respectively mean the South
Wales Electrical Power Distribution Company Act of
those respective years;

63 & 64 Vict.
c. cclxxxii.
2 Edw. 7.
c. cxviii.
5 Edw. 7. c. xlix.
6 Edw. 7.
c. cxcvii.
22 & 23 Geo. 5.
c. xii.

“the Act of 1932” means the South Wales Electric Power
Act 1932.

3. The Company shall have power and be deemed always
to have had power to borrow from the board such sums of
money (advanced by the board out of moneys made available
to them by the Treasury for the purpose) as may from time
to time be required for payment of the costs of and incidental
to any works which are to be financed by the Treasury and
which have been or are to be constructed by the Company in
accordance with the arrangement made by the board with the
Company under section 5 of the Electricity (Supply) Act 1926
as aforesaid and any such money may be borrowed from the
board free of interest and on the terms and conditions with
respect to the repayment thereof and otherwise which are
provided for by that arrangement. Provided that no money so
borrowed shall be secured by a mortgage or assignment of or
be a charge on the undertaking of the Company.

Power to
borrow from
Central
Electricity
Board.

4.—(1) The Company and any holder of irredeemable debenture
stock of the Company existing at the passing of this Act (including
trustees executors administrators and all other holders in any
representative or fiduciary capacity) may agree for the redemption
or purchase by the Company of the irredeemable debenture
stock held by such holder or any part thereof and the Company
may for the purpose of any such agreement apply any money
for the time being in their hands which they are entitled to apply
to capital purposes.

Power to
purchase
irredeemable
debenture
stock.

(2) All debenture stock redeemed or purchased by the Company
under the powers of this section shall be forthwith cancelled and
extinguished.

5. The word “and” before the words “for the time being
outstanding” in paragraph (i) of subsection (1) of section 16
(Loan capital) of the Act of 1932 is hereby repealed.

Amendment of
section 16 of
Act of 1932.

Temporary loans.

6. The words "from their bankers by means of overdrafts or otherwise" in section 29 (Company may incur temporary loans) of the Act of 1906 are hereby repealed.

Purchase &c. of lands by agreement.

7. Section 10 (Power to purchase lands by agreement) of the Act of 1900 as amended by section 9 (Repeal of part of section 10 of Act of 1900) of the Act of 1902 is hereby further amended by the substitution therein of the words "two hundred and fifty acres" for the words "thirty acres."

Amendment of section 54 of Act of 1932.

8. Section 54 (Extending powers of user of generating station sites) of the Act of 1932 is hereby amended by the insertion therein of the words "or leased" after the word "belonging."

Registers of transfers.

9.—(1) Notwithstanding anything in the Companies Clauses Acts 1845 to 1889 it shall not be obligatory on the Company to keep registers of transfers of shares stock debenture stock or mortgages so long as the Company in lieu of those registers shall keep a file of all transfers and evidences of transmission of any shares stock debenture stock or mortgages of the Company which are sent to them for registration in accordance with the provisions of those Acts other than any transfer deeds which have been or shall be lawfully destroyed or otherwise disposed of by the Company under the powers conferred by Regulation No. 7 of the Defence (Companies) Regulations 1940 made under the Emergency Powers (Defence) Acts 1939 and 1940 which Regulation No. 7 is set out in S.R. & O. 1941 No. 1778.

2 & 3 Geo. 6.
c. 62.
3 & 4 Geo. 6.
c. 20.

(2) Section 49 (Closing of transfer books) of the Act of 1932 shall apply to and with respect to any file of transfers and evidences of transmission kept by the Company under this section as if any such file were a register of transfers within the meaning of that section.

Qualification of directors.

10.—(1) Every director of the Company who is not qualified at the time of his election as a director shall obtain his qualification within two months after his election. If any director of the Company does not within such two months obtain his qualification he shall vacate his office as director and shall be incapable of being re-elected a director until he has obtained his qualification.

(2) For the purposes of the proviso to section 10 (As to qualification of directors) of the Act of 1905 a general notice given to the directors of the Company by one of them to the effect that he is a member of a specified company or firm and is to be regarded as interested in any contract which may after the date of the notice be made with that company or firm shall be deemed to be a sufficient disclosure of interest in relation to any contract so made.

11. Section 98 (Proceedings to be entered in a book and to be evidence) of the Companies Clauses Consolidation Act 1845 shall in its application to the Company have effect as if the words "or of the next succeeding meeting" were inserted therein after the words "shall be signed by the chairman of such meeting."

Signing of
minutes &c.
8 & 9 Vict.
c. 16.

12. The Company may apply to the purposes of this Act to which capital is properly applicable any money which they have raised or may hereafter raise under the powers conferred by the South Wales Electric Power Acts and Order 1900 to 1941.

Application of
capital money.

13. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

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